

25NNCV04246 25NNCV04246

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-04

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Case Number: 25NNCV04246 Hearing Date: September 4, 2026 Dept: A

TENTATIVE

RULING

SEPTEMBER 4,
2026

MOTIONS

TO DEEM RFA MATTERS ADMITTED

Los Angeles Superior Court

Case # 25NNCV04246

MP: Plaintiff

Creditors Adjustment Bureau, Inc.

RP: No

opposition received

NOTICE:

The Court is not requesting oral argument on this matter. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at

BurDeptA@LACourt.org or by telephone at (818) 260-8412.

MOTIONS ON CALENDAR:

On June 4, 2026, Creditors

Adjustment Bureau, Inc. ("Plaintiff") filed three

motions for order deeming Requests for Admissions ("RFA"), set one, admitted

against: (1) Timothy G Behunin; (2) Behunin Construction, Inc.; and (3) Laec

Incorporated. The Court is not in receipt of an opposition brief. The Court notes that, pursuant to C.R.C. Rule

8.54(c), a failure to oppose a motion may be deemed consent to its being

granted.

LEGAL STANDARD:

If a

party fails to respond to requests for admission in a timely manner, the

requesting party may move for an order that the matters be deemed

admitted. (C.C.P. § 2033.280(b).)

The requesting party's motion must be granted by the court unless the party to

whom the requests for admission have been directed has served a proposed

response to the requests for admission that is in substantial compliance with

C.C.P. § 2033.220 prior to the hearing. (C.C.P.

§ 2033.280(c).) By failing to timely respond, the party to whom the

requests are directed waives any objection to the requests, including one based

on privilege or work product. (C.C.P.

§ 2033.280(a).)

ANALYSIS:

A.

Discussion

On April 14, 2026, Plaintiff served on Defendants the

discovery requests. On May 21, 2026,

Plaintiff emailed Defendants reminding them about their past-due responses and

requesting responses by May 22, 2026. As

of the filing of the motions, Plaintiff states that it has not received Defendants'

responses.

Plaintiff's unopposed motions for an order deeming the RFAs

admitted are granted, pursuant to C.C.P. § 2033.280.

B.

Sanctions

The Court has discretion to impose a monetary sanction against a party engaging in the misuse of the discovery process, or any attorney advising that conduct. (C.C.P. § 2023.030(a).) Sanctions are only mandatory as against a party who unsuccessfully makes or opposes a motion to compel a response to interrogatories or RPD, unless the Court finds they acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (C.C.P. §§ 2030.290(c) & 2031.300(c).) It is mandatory for the court to impose a monetary sanction on the party or attorney, or both, whose failure to serve a timely response to RFAs necessitated this motion. (C.C.P. § 2033.280(c).) Regardless, it is customary to grant sanctions where a party has filed a motion to compel, and the other party fails to file an opposition. (C.R.C. Rule 3.1348(a).)

Plaintiff requests \$1,873.82 in sanctions against each Defendant (= [2 hours for the motion + 1 anticipated hours to attend the hearing at \$600/hour] + \$73.82 in filing fees). (Brown Decl., ¶6.) Sanctions were not sought against defense counsel.

The requests are granted in the reasonable amount of \$673.82 per motion. The Court finds that this amount is reasonable as these are straightforward, unopposed motions to deem RFAs admitted and are partially duplicative in nature.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiff's Motions to Deem the RFAs Admitted came on regularly for hearing on September 4, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE MOTIONS TO

DEEM THE REQUESTS FOR ADMISSION ADMITTED ARE GRANTED AS AGAINST TIMOTHY G. BEHUNIN, BEHUNIN CONSTRUCTION, INC.,

AND LAEC INCORPORATED.

Defendants ARE EACH ordered to pay \$673.82 in monetary sanctions to Plaintiff, by and through counsel, within 30 days of this order.

PLAINTIFF TO PROVIDE NOTICE.

IT IS SO ORDERED.